
Journal2012 CLC 24

CourtLAHORE HIGH COURT

Date2011-07-27

Appeal No.PETITION NO. 4240. OF 2010,

JudgeASAD MUNIR

PartiesMUHAMMAD ZAMAN (PETITIONER) VERSUS UZMA BIBI AND 4 OTHERS: (RESPONDENTS)

LawyersABDUL QADEER WARRAICH FOR PETITIONER. |CH. MUHAMMAD AKBAR WARRIACH FOR RESPONDENTS NOS. 1 TO 3.|- |MISS YASMIN SEHGAL, D.A.-G.H.-.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 14 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 5, SCHEDULE AND S. 14 CONSTITUTION OF PAKISTAN - ARTICLE 199 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - SS. 1(2), 5Y SCHED, AND S.10(4) WEST PAKISTAN FAMILY COURTS RULES, 1965 - R.6 CIVIL PROCEDURE CODE (V OF 1908) - S. 83 PAKISTAN CITIZENSHIP ACT (II OF 1951) - S.14(B) CONSTITUTION OF PAKISTAN - ARTICLES 1(2) AND 199 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - SS. 1(2), 5 AND SCHEDULE

Judgment

ASAD MUNIR, J.- Facts in brief are that on 27-1-2009 respondent No.1 along with her minor children', respondents Nos.2 and 3, filed a suit in the Court of Family Judge, Gujrat, against the petitioner for the dissolution of respondent No.1's marriage and for recovery of maintenance. In his written statement, the petitioner took the preliminary objection that the Judge Family Court, Gujrat, had no jurisdiction to try the suit as the parties were citizens of Azad Jammu and Kashmir. An application was also filed seeking dismissal of the suit on the basis of the aforesaid preliminary objection. However, the learned Judge Family Court, Gujrat, vide his order dated 21-7-2009 over-ruled the objection. Against the said order, the petitioner preferred an appeal which* has been dismissed by the learned Additional District Judge Gujrat's judgment dated 9-10-2009 on the ground' that Family Judge's order dated 21-7-2009, being an interim order, was not appealable under section 14 of the West Pakistan Family Courts Act, 1964. Subsequently, the learned Family Judge, Gujrat, by his order dated 5- 11-2009, passed under the proviso to section 10(4) of the West Pakistan Family Courts Act, 1964, has dissolved the marriage between the petitioner and respondent No.1 i on the ground of khula as no reconciliation could be brought about between the parties. * F 2. Through this writ petition, the petitioner has called into question Family Judge's orders dated 21-7-2009 and 5-11-2009 and judgment dated 9-10-2009, passed by the learned Additional District Judge, Gujrat.

Relying on Muhammad Zaffar Khan v. Mst. Shehnaz Bibi and 2 others (1996 CLC 94), the learned counsel for the petitioner has argued that Family Judge's order dated 5-11-2009, was appealable as it cannot be regarded as an interlocutory order. It is further argued that respondents Nos.1 to 3, being the citizens of Azad Kashmir, the learned Family Court had no jurisdiction as the West Pakistan Family Courts Act, 1964, is applicable to the citizens of Pakistan only. The learned counsel has j also submitted that the marriage between the parties was solemnized in Azad Jammu and Kashmir, where the minors were also born and that, as such, the cause of action disclosed in the suit has no nexus with Pakistan. In support of his arguments, the learned counsel has referred to Rehmat Ullah v. Mst. Shamim Akhtar and another (1997 CLC 16) and Mst. Amira Bokhari v. Faqir Syed Jameel-ud-Din Bokhari and 2 others (PLD 1994 Lahore 236). In response, the learned counsel for the respondents Nos; 1 to 3 has referred to section 14(b) of the Pakistan Citizenship Act, 1951, to contend that respondent Nos.1 to 3 are the citizens of Pakistan * where the cause of action has also arisen.

* f 3. Learned DAG, who was asked to assist the Court, has submitted m that even if it is assumed that the respondents are not citizens of Pakistan they are. not debarred from invoking the jurisdiction of courts in * Pakistan. In this regard, the learned DAG has referred to section 83 of the Civil Procedure'Code, 1908, which provides that even if a person is ' not a citizen of Pakistan, he can as an alien always sue in Pakistan unless he falls within the definition of an alien enemy. , T I . 4. I have heard the learned counsel for the parties and have, also gone through the relevant record. .

r * - * 5. There is merit in the argument that an appeal was maintainable against the Family Judge's order dated 21-7-2009 which could not be regarded as an interlocutory or interim order. This is so because an order can be described as an interim or interlocutory order only if it is not final or definite. An order cannot be treated as interim or interlocutory if it finally decides the issue of maintainability of the suit or the jurisdiction of the court as has happened in the instant case where the Family Judge vide his order dated 21-7-2009, while dismissing the petitioner's application, has finally decided the question of jurisdiction. The aforesaid view is supported by Muhammad Zaffar Khan v. Mst. Shehnaz Bibi and 2 others, cited by the learned counsel for the petitioner.

6. Even though the learned Additional District Judge has not decided petitioner's appeal on merits by wrongly holding that it was not competent, the question of legality of the order impugned in the appeal can be addressed by this Court. In this regard, the record shows that the respondent No.1 along with respondents Nos.2 and 3 have since long been residing in village Kalra Punwan, Tehsil and District Gujrat. Respondent No. 1 is also a holder of national identity card which proves that she is a citizen of Pakistan along with her children who also appear to be registered as citizens of Pakistan. The stand of respondents Nos.1 * 1 * 3 of being citizens of Pakistan is also supported by section 14(b) of the Pakistan Citizenship Act, 1951, which allows a permanent resident of State of Azad Jammu and Kashmir, who has migrated to Pakistan to be regarded as a citizen of Pakistan. Section 14(b) of the Pakistan Citizenship Act, 1951 is reproduced hereunder:- "A person who being a subject of State of Jammu and Kashmir, has migrated to Pakistan with the intention of residing therein "until such time as the relationship between Pakistan and that State is finally determined, shall, without prejudice to his status as such subject, be a citizen of Pakistan".

Reference may also be made to Office Memorandum No.8/9/70 (Coord. 1) dated 24-6-1970 which states that "Although Azad Kashmir is not part of Pakistan within the meaning of Article 1(2) of the Constitution, it should for all practical purposes be treated like any other Province". In *Mst. Naseem Akhtar v. Director General Immigration and Passport and others* (PLD 2006 Lahore 465), it was observed that subjects of Azad Kashmir holding Pakistani passports are deemed to be citizens of Pakistan.

c T 7. Section 1(2) of the West Pakistan Family Courts Act, 1964, provides that the Act applies to the whole of Pakistan and there is no bar contained therein as would exclude the jurisdiction of the Family Court where the parties are not citizens of Pakistan- or one of them is not a citizen of Pakistan. The residence of one party gives the Family Court in Pakistan jurisdiction especially in the case of a family suit filed by the wife for the dissolution of the marriage or for recovery of maintenance, even if the marriage was solemnized outside Pakistan. A reference may be made to Rule 6 of the West Pakistan Family Courts Rules, 1965, which in the case of a suit for dissolution of marriage confers jurisdiction on the Family Court within whose local limits the wife ordinarily resides while a. suit for maintenance can be filed in the Family Court within whose territorial jurisdiction the cause of action wholly or in part has arisen. In the present case, admittedly, the respondents since long have been living in District. Gujrat where they need maintenance. As such, the cause of action can be stated to have arisen in' Gujrat. Reference may also be made to *Masood Ahmad Malik v. Mst. Fouzia Farhana Ouddus* (1991 SCMR 681) where the marriage was solemnized in Washington, . USA, but the talaq was pronounced by the husband in Islamabad. However, it was held that the Family Court functioning under the Family * Courts Act, 1964, had the jurisdiction to entertain the suit for jactitation of marriage brought by the husband. It may be observed that the question of -citizenship or nationality is not relevant while determining the1 question of jurisdiction of the courts in Pakistan. Section 83 of the Civil Procedure Code, 1908, also provides that even if a person is not a citizen of Pakistan he can as an alien always sue in Pakistan unless he falls within the definition of an alien enemy. Thus, any foreigner can avail and invoke the jurisdiction of the courts in Pakistan provided the defendant resides within the jurisdiction or the cause of action whether wholly or in part has arisen in Pakistan.. In the present case, the respondents Nos.1 to 3 are not only the citizens of Pakistan but are also residing in Pakistan where the cause of action has arisen. It follows that the said respondents can under law invoke and avail the jurisdiction of r l the courts in Pakistan including the Family Courts exercising jurisdiction k under the West Pakistan Family Courts Act, 1964. *Rehmat Ullah v. Mst. Shamim Akhtar and another* (1997 CLC 16), cited by the learned counsel for-the petitioner, has facts altogether different from those involved in the- present case. In the cited precedent, the suit for dissolution had been m filed by the wife before the Family Court in Pakistan after the courts in Azad Kashmir upto the level of Supreme Court had dismissed her

identical suit for dissolution of marriage on the ground of khula and there was also no evidence of the wife being a citizen of Pakistan or residing permanently in Pakistan. Likewise, Mst. Amira Bokhari versus Faqir Syed Jameel-ud-Din Bokhari and 2 others (PLD 1994 Lahore 236) is not relevant here as it did not deal with the question of jurisdiction, of the Family Courts in Pakistan but related to the vices of a notice, of talaq sent under section 7 of Muslim Family Laws Ordinance, 1961, which it was held could not be invoked in view of section 1(2) of the Ordinance as both husband and wife were citizens of USA.

h, i' 8. The foregoing discussion leads me to the conclusion that there is no merit in this writ petition as no illegality can be found in learned Judge Family Court's orders dated 21-7-2009 and 5-11-2009 as well as judgment dated 9-10-2009,* passed by the learned Additional District, Judge, Gujrat. Accordingly, this writ petition is dismissed but without any order as to costs.

Petition dismissed.

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